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SABLE HARBOR ADVISORY — IP, DATA AND METHOD TRANSFER STANDARD

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Owner: Advisory with Legal, Product and Security

Related: SH-ATL-016; SH-ADV-001-006

1. Purpose

Advisory is designed to leave clients more capable without transferring Sable Harbor crown-jewel intellectual property, another client's confidential material, protected J2 content, or proprietary operating-business secrets. The boundary is not solved by vague references to “best practices.” It is defined matter by matter and artifact by artifact.

2. Four ownership classes

Every material work product, workflow, agent component, dataset, method or artifact is classified into one of four transfer classes.

Class A — Client-owned

Normally includes:

- client-provided data and evidence;
- client-specific factual models and normalized datasets created from client data;
- client decisions and action records;

- client-specific procedures created from scratch for the engagement;
- client-specific prompts, rules, runbooks and tests that contain no protected Sable Harbor IP;
- client-specific transferred agent configuration;
- accepted client-side outcome baselines and measurement records;
- agreed final deliverables.

Class B — Licensed Sable Harbor capability

May include:

- Atlas Meridian client-plane functionality;
- reusable workflow components;
- approved templates;
- generalized methods;
- connectors;
- agent frameworks;
- evaluation harnesses;
- proprietary models or libraries exposed only through licensed interfaces.

The client receives contractual use rights, not ownership.

Class C — Sable Harbor reserved professional IP

Normally includes:

- professional-plane orchestration;
- cross-matter learning systems;
- internal prompts/system instructions;
- proprietary evaluation corpora;
- internal reviewer tools;
- internal risk heuristics;
- Sable Harbor operating-business trade secrets;
- proprietary methodology not expressly licensed;
- internal cost/pricing methods;
- internal incident and failure libraries;
- firm-wide knowledge graphs and memory.

Class D — Restricted / nontransferable third-party or institutional material

Includes:

- other clients' confidential information;
- protected J2 records or source information;

- third-party licensed material without transfer rights;
- privileged material;
- legally restricted data;
- classified or export-controlled information where applicable;
- personal data outside agreed transfer rights.

3. Practice-specific transfer rules

3.1 Intelligence Advisory

The client receives the decision-grade answer, evidence-supported analysis, assumptions, uncertainty, relevant client-safe provenance, and agreed decision artifacts. The client does not automatically receive Sable Harbor's full investigative machinery, cross-client pattern library, or professional-plane agent constellation.

3.2 Intelligence Capability

Transfer is broader. The default objective is a functioning client-owned/client-licensed intelligence capability with:

- operating model;
- roles and authority;
- intake and question management;
- collection/evidence workflows;
- analysis/judgment workflows;
- review and escalation;
- Atlas client-plane configuration;
- agent workflows;
- runbooks;
- evaluation and monitoring;
- training;
- governance and retention controls.

The client is taught how to produce its own intelligence, not given J2's protected internal records or Sable Harbor's entire institutional machinery.

3.3 Operational Excellence

The client receives operational design, process changes, metrics, controls, training, implementation artifacts and transferable tooling required to sustain the agreed capability. Sable Harbor does not automatically transfer proprietary mine plans, process chemistry, logistics economics, internal vendor terms, unpublished failure data, or other operating-company trade secrets merely because they informed professional judgment.

4. Reclamation example

An Operational Excellence matter may teach a client how to establish a high-performing reclamation function. Transferable material can include:

- governance and responsibility model;
- planning cadence;
- closure/reclamation risk register;
- contractor management controls;
- cost-estimation methodology created for the client;
- monitoring/verification workflows;
- regulatory commitment tracking;
- progressive reclamation operating model;
- client-specific Atlas workflows and agents.

Reserved Sable Harbor material may include proprietary operating-business remediation techniques, site-specific cost curves, unpublished technical process details, supplier economics, internal failure cases, or other secrets whose disclosure is not necessary to transfer the capability.

The client should receive the **competence**, not a photocopy of Sable Harbor's confidential playbook.

5. Background IP and foreground IP

Contracts distinguish:

- **Background IP** — pre-existing Sable Harbor/client/third-party property.
- **Foreground client IP** — client-specific material developed uniquely for the client and designated client-owned.
- **Foreground Sable Harbor IP** — generalized improvements, reusable methods, platform enhancements and professional tooling developed without incorporating client-confidential content beyond permitted abstraction.

No contract should casually assign all “work product” to one party without these distinctions.

6. Generalization and productization

Client work may reveal generalized product opportunities for Atlas Meridian or other Sable Harbor products. Productization is allowed only when:

1. client confidentiality is preserved;
2. Sable Harbor has the required rights;
3. no client-specific data, labels, prompts, outputs or trade secrets are copied without authorization;
4. the generalized feature can be explained without exposing protected client material;
5. product and Legal approval is recorded for sensitive cases.

The fact that an idea arose during a client matter does not automatically make every implementation client property, nor does it automatically make client material Sable Harbor property.

7. Agent and workflow transfer

Every transferable agent/workflow package must identify:

- owner;
- license status;
- dependencies;
- runtime/model assumptions;
- data scope;
- action permissions;
- prompts/instructions classified client-owned, licensed or reserved;
- tests/evaluation criteria;
- stop conditions;
- monitoring;
- support path;
- version;
- exportability;
- prohibited use where applicable.

A transfer package must not contain hidden calls to Sable Harbor-only memory or professional-plane resources unless the contract explicitly licenses that continuing dependency.

8. Data rights

The client retains rights in its source data subject to contract and law. Sable Harbor receives only the rights required to perform the matter, operate licensed services, preserve required professional records, satisfy legal obligations, and use properly de-identified/generalized learning where expressly permitted.

Client data is not converted into unrestricted training material by default.

9. Institutional memory

Sable Harbor may preserve matter metadata, professional decisions, review outcomes, incidents, and lessons required for professional quality and risk management, subject to confidentiality, retention, privilege and contractual constraints. The retained institutional memory must distinguish client facts from generalized professional learning.

10. Exit rights

A client ending Advisory should be able to obtain the material it owns and the exports promised by its Atlas license in a usable format. Exit must not be obstructed merely to preserve recurring revenue.

Sable Harbor may retain required professional records and reserved IP. The client may continue to use licensed capability according to the post-termination terms of the license.

11. Trade-secret boundary review

Before transferring a deliverable materially informed by a Sable Harbor operating business, the Matter Principal and designated IP reviewer determine whether the work product reveals protected operating knowledge. Where possible, the team should abstract the transferable principle while withholding unnecessary secret implementation detail.

12. No dependency theater

Sable Harbor may sell continuing support, managed services or licenses. It may not intentionally make a supposedly transferred capability unusable without Sable Harbor by hiding required instructions, tests, interfaces, credentials, documentation or client-owned artifacts.

If continuing dependency is part of the product, it must be explicit in the contract and architecture.

13. Transfer certificate

At matter close, the Transfer Owner issues a transfer certificate listing:

- client-owned artifacts delivered;
- licensed Sable Harbor components;
- reserved/nontransferable components;
- third-party dependencies;
- data exports completed;
- training completed;
- acceptance tests;
- open defects/limitations;
- support obligations;
- retention and deletion disposition.

This certificate is preserved in Atlas Meridian as part of the matter closure record.